

**RESOLUTION NO. 26-LRA-102
PRESENTED TO THE BOARD MAY 27, 2026**

TO: LRA BOARD OF COMMISSIONERS
STEPHEN WESTBROOKS, EXECUTIVE DIRECTOR

FROM: DAVID MEYER, ASSOCIATE CITY COUNSELOR

RE: RESOLUTION AUTHORIZING AND APPROVING AN ADMINISTRATION
AGREEMENT WITH ST. LOUIS DEVELOPMENT CORPORATION

EXECUTIVE SUMMARY:

This Resolution authorizes and approves an Administrative Agreement between St. Louis Development Corporation (SLDC) and the Land Reutilization Authority of the City of St. Louis, Missouri (LRA).

BACKGROUND:

St. Louis Development Corporation acts as the administrative arm of LRA. SLDC provides LRA and each of the other city development agencies and authorities with staff, professional services and overhead for the administration of their programs. The Agreement to be approved sets out this relationship with the LRA. The same Agreement is executed with each of the SLDC-affiliated agencies and authorities.

The Agreement will be for a period of five (5) years and will automatically renew from year to year on the expiration of each successive renewal term until June 30, 2031.

A draft agreement is attached to this resolution.

REQUESTED ACTION:

Approval of this Resolution.

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF COMMISSIONERS OF THIS LAND REUTILIZATION AUTHORITY OF THE CITY OF ST. LOUIS, MISSOURI, THAT:

1. The Land Reutilization Authority of the City of St. Louis, Missouri hereby approves this Resolution and authorizes an Administrative Agreement between St. Louis Development Corporation (SLDC) and the LRA, in substantially the form submitted to the LRA, with such changes as the Executive Director may approve that are consistent with the form as submitted to the LRA. The signature of the Chair, Vice Chair or the Executive Director or his designee on the Agreement, whether manual or facsimile, shall be conclusive evidence of approval by the LRA.
2. The Executive Director, his/her designee, and the appropriate officers, agents and employees of SLDC are hereby authorized to take all actions necessary to effectuate the intent of this Resolution.
3. This Resolution shall take effect and be in full force immediately after its passage and approval by the governing body of the LRA Board.

ADOPTED this 27th day of May 2026.

LAND REUTILIZATION AUTHORITY OF THE CITY
OF ST. LOUIS, MISSOURI

By: _____

Title: Secretary

(SEAL)

ATTEST:

Assistant Secretary

EXHIBIT A

ADMINISTRATION AGREEMENT

THIS AGREEMENT, made and entered into this 1st day of July, 2026, by and between ST. LOUIS DEVELOPMENT CORPORATION, a Missouri not for profit corporation (“SLDC”) and the LAND REUTILIZATION AUTHORITY OF THE CITY OF ST. LOUIS, MISSOURI, a public body corporate and politic organized under the laws of the State of Missouri (the “LRA”);

RECITALS

WHEREAS, the LRA is organized pursuant to Chapter 92.900 of the Revised Statutes of Missouri, *et seq.* (the “Statute”) for the purpose of returning land to effective utilization to provide housing, industry and jobs for the citizens of the City of St. Louis, Missouri; and

WHEREAS, the LRA is empowered to make and execute contracts necessary or appropriate for the exercise of its powers and purposes; and

WHEREAS, SLDC is organized pursuant to Chapter 355, Missouri Revised Statutes, for the purposes of advancing the social welfare, health and economic interests of the City of St. Louis, Missouri and its residents; and

WHEREAS, SLDC is empowered to contract and cooperate with public corporations, political subdivisions or any agency or department thereof in furtherance of its corporate purposes, and in pursuance thereof, shall provide office facilities, staff operating support and professional services to the LRA in accordance with the terms and conditions of this Agreement; and

WHEREAS, the LRA is desirous of securing such staff, operating support, facilities and professional services from SLDC for the operation of activities including the servicing of the LRA’s obligations under existing debentures and contracts, the operation of the LRA’s facilities and in fostering economic development in the City of St. Louis;

NOW, THEREFORE, for and in consideration of the premises and the mutual covenants hereinafter contained, the parties hereto covenant and agree and follows:

ARTICLE I

AGREEMENT TERM

1.1 Initial Term. This Agreement shall commence upon execution by the parties hereto for twelve (12) months, until June 30, 2027 (the “Initial Term”).

1.2 Renewal Terms. This Agreement shall be automatically renewed from year to year for four (4) additional one (1) year terms subject to annual appropriations and funding by LRA, commencing on the date of expiration of the Initial Term, and each successive renewal term, and ending not later than June 30, 2031, unless terminated by either party in accordance with Section 1.3 below.

1.3 Termination. This Agreement may be terminated during the Initial Term and any renewal term, without cause, by either party by the provision of ninety (90) days prior written notice to the other party. Said notice may be waived by the mutual written consent of the parties hereto. Further, said notice is inapplicable if the termination is for a failure of appropriation and funding as set forth in Section 1.2 above.

ARTICLE II

SCOPE OF SERVICES

2.1 Staff. SLDC shall provide staff for the administration, operation and implementation of the programs and functions of the LRA. SLDC shall, upon request by the LRA, perform duties on behalf of LRA that it is responsible for under Chapter 92.900 R.S.Mo., *et seq.*; provided, however, SLDC shall not have any authority, without the prior written consent of the LRA, to sell or encumber any assets of the LRA or to borrow any funds in the name of the LRA. All staff shall be employed by SLDC and SLDC shall provide appropriate fringe benefits to the staff.

2.2 Administrative Services. SLDC shall provide managerial, administrative, secretarial, word processing and bookkeeping services to the LRA as required for the regular conduct of the business of the LRA.

2.3 Professional Services. SLDC shall furnish financial management, accounting, legal services and other professional services to the LRA.

2.4 Fund Management Services. Except as otherwise provided by Chapter 92.905 R.S.Mo., *et seq.*, and as provided in Section 2.6 below, SLDC shall provide financial and accounting services to the LRA and shall disburse and manage, on a segregated basis in the name of the LRA, all funds of the LRA, including existing funds and future receipts. Subject to said Sections, the LRA hereby appoints SLDC as the sole agent with respect to the existing funds and future receipts of the LRA. Such agency is coupled with an interest and shall be irrevocable except upon termination of this Agreement pursuant to Section 1.3 above. The following provisions regarding management of the said existing funds and future receipts of the LRA shall govern:

(a) all the LRA funds shall be physically segregated, to account for the revenues and expenditures of the LRA;

(b) SLDC shall maintain special funds, debt service reserves and other special funds as required by the LRA;

(c) monthly financial statements for the LRA shall be provided, together with an annual audit thereof;

(d) disbursements shall be made upon dual signatures based upon proper documentation and approval by the Executive Director of SLDC or his/her designee and the Controller of SLDC or his/her designee (unless otherwise provided in existing bond indentures or other contracts of the LRA), and in accordance with an annual budget presented for approval to the LRA Board thirty (30) days prior to the start of each fiscal year;

(e) cash balances and reserve funds shall be invested daily in obligations of the State of Missouri or of the United States or any agency thereof, or in bank certificates of deposit collateralized by the United States or United States agency obligations;

(f) all unexpended revenues in the said account of the LRA or of the LRA's contractors, less any outstanding obligations, shall be returned to the LRA upon termination of the Agreement between SLDC and the LRA; provided, however, that any revenues constituting "Program Income" as defined in 24 CFR Section 570.504 shall be handled in accordance with the Agreement between St. Louis Community Development Administration ("CDA") and the LRA, or CDA and SLDC as applicable, and provided further that any revenues subject to restriction under outstanding bonds or

contracts of the LRA and any other Restricted Funds shall be disposed of in accordance with such restrictions.

(g) SLDC shall not expend or commit funds of the LRA (other than for those purposes provided in the budget).

With respect to Section 2.4 hereof, it is expressly agreed by the parties hereto that LRA is bound by the provisions of Chapter 92.905 R.S.Mo., *et seq.*, and where required, SLDC shall comply with same. In the event the provisions of Section 2.4 are inconsistent therewith, the Statute shall prevail.

2.5 Reports. SLDC shall present financial reports to the LRA on a monthly basis. Other reports needed for the LRA's decision making processing or as required by law shall be presented by SLDC to the LRA in a timely manner. In addition, SLDC shall report monthly to the LRA on marketing and other activities of SLDC. SLDC shall prepare an annual report to the LRA.

2.6 Community Development Funds. If and to the extent the LRA is, or in connection with prospective programs during the term of this Agreement, shall be an applicant for funding administered by CDA, SLDC shall prepare and process such applications and accept financial responsibility for such programs in SLDC's name, and shall report to the LRA regarding said funds in accordance with Sections 2.4 and 2.5 above.

2.7 Office Facilities. SLDC shall provide offices and record storage to the LRA. The LRA shall make available to SLDC all of the LRA files and records, present furnishings, file cabinets and equipment. SLDC shall return all such LRA files, records, furnishings, file cabinets and equipment upon termination of this Agreement, provided SLDC, acting in its sole discretion shall have the right to dispose of any furnishings, file cabinets and equipment it deems obsolete, worn or unneeded at any time during the term of this Agreement and provided that SLDC may retain copies of any LRA file or record. SLDC may, upon notice to the LRA, dispose of any files and records of the LRA delivered to SLDC under this Agreement; provided, however, any such disposition shall be consistent with any record retention requirements applicable to the LRA imposed by federal, state or local laws, regulation, ordinance or order or any contract of the LRA.

ARTICLE III

COMPENSATION

3.1 Consideration. The consideration supporting this Agreement shall be the mutual obligations contained herein and shall not include monetary consideration, except as otherwise provided herein.

3.2 Fees. In consideration for the services provided in accordance with Article II hereof during the Initial Term, the LRA shall pay in good funds to SLDC a fee as mutually determined by the parties. Said fee shall, at a minimum, be sufficient to cover the costs incurred by SLDC during the Initial Term under this Agreement for the provision of services to the LRA in accordance with Article II hereof. The fee due SLDC shall be determined annually by the mutual written consent of the parties hereto, ninety (90) days prior to the expiration of each renewal term. Such sum shall be paid in equal monthly installments due on the first day of each month, or at such other times and dates as the parties may agree.

3.3 Consent. The LRA agrees not to expend or commit any of its funds during the term of this Agreement other than for those purposes provided in the budget in order to ensure that SLDC can provide appropriate staff to implement the expenditure or commitment of funds and that the costs of such staff is covered. SLDC also agrees not to expend or commit funds of the LRA other than for those purposes provided in the budget.

ARTICLE IV

INDEMNIFICATION

4.1 Indemnification. SLDC agrees to indemnify and hold the LRA and its officers and directors harmless from any and all loss, damage, liability, claim, demand, cause of action and expense (including reasonable attorneys' fees) relating to any actual or alleged injury to or death of any person, any actual or alleged loss or damage to property, or any other actual or alleged loss or damage suffered by any third party arising from any wrongful, willful or intentional acts of SLDC or its employees to the extent such loss, damage, liability or expense exceeds the limits of any liability insurance; provided, however, nothing contained herein shall require SLDC to indemnify the LRA, its officers and directors for any claim or liability resulting from the wrongful, willful or intentional acts of the LRA, its officers and directors.

4.2 Insurance. SLDC shall maintain hazard and general liability insurance, or adequate self insurance with the City of St. Louis Public Facilities Protection Corporation, for the LRA's operations and each of its officers and directors, in such form and amount agreed upon by SLDC and the LRA.

ARTICLE V

MISCELLANEOUS PROVISIONS

5.1 Default. If either party fails to perform any of its obligations hereunder (the "defaulting party"), the other party may, after ten (10) days' written notice and demand, perform or cause to be performed, the defaulting party's obligations hereunder and charge the reasonable cost to the same.

5.2 Modifications. All modifications to this Agreement shall be in writing and signed by the parties hereto.

5.3 Assignment. Neither party's rights or obligations hereunder shall be assigned without the prior written consent of the other party.

5.4 Non-Discrimination. In accordance with applicable federal, state and local laws, regulations, ordinances and orders, SLDC shall not discriminate against employees or applicants for employment on the basis of race, creed, color, sex, sexual orientation, national origin, or physical disability.

5.5 Waivers. The waiver, by either party, of any breach under this Agreement shall in no way constitute a waiver of any subsequent breach of any term or condition hereof.

5.6 Notices. All notices and communications hereunder shall be in writing and shall be deemed given, made or communicated if either delivered in person or sent by first class United States certified mail and addressed to:

If to SLDC: St. Louis Development Corporation
1520 Market Street, Suite 2000
St. Louis, Missouri 63103
Attention: Executive Director

If to LRA: Land Reutilization Authority of the City of St. Louis, Missouri
1520 Market Street, Suite 2000
St. Louis, Missouri 63103
With a copy to Chairman (at his/her personal address).

5.7 Non-Exclusive Agreement. The parties hereto agree and understand that this Agreement shall be non-exclusive, and that SLDC intends to contract on a similar basis with other entities, including, but not limited to: the Land Clearance for Redevelopment Authority of the City of St. Louis, the Planned Industrial Expansion Industrial Authority of the City of St. Louis, the Port Authority of the City of St. Louis, and the Industrial Development Authority of the City of St. Louis.

5.8 Access to Books and Records. The fiscal and programmatic records of SLDC shall be available upon request of CDA and the LRA. Books and records shall be retained for a minimum of five (5) years and in accordance with the Housing and Urban Development Community Block Grant regulations, applicable Small Business Administration regulations, and Missouri Revised Statutes.

5.9 Independent Contractors; No Alter Ego. Except as specifically provided in Section 2.4 above, nothing contained in this Agreement is intended to nor shall be construed to create any partnership, joint venture, alter ego, or other relation of or between the parties, except that of independent contracting entities. SLDC and LRA mutually agree that each shall be considered for all intents and purposes to be the independent contractor of the other, and neither shall be considered, nor shall the officers, employees or agents of each be considered to be the employees or agents of the other, except as (i) agents and independent contractors for the limited purpose of performing acts as authorized or required under this Agreement, and (ii) certain officers and employees of SLDC may be duly elected as officers of the LRA.

5.10 Statutory Powers. All the powers of the LRA shall be and remain vested in its board of commissioners pursuant to Chapter 92.900 RSMo., *et seq.*, and the LRA shall retain and may exercise all powers necessary or appropriate to carry out and effectuate its purposes under the Statute.

5.11 Invalid Provisions. In the event any covenant, condition or provision herein contained is held to be invalid by a court of competent jurisdiction, the invalidity of any such covenant, condition or provision shall in no way affect any other covenant, condition or provision herein contained, provided the invalidity of any such covenant, condition or provision does not materially prejudice either SLDC or LRA in its respective rights and obligations contained in the valid covenants, conditions and provisions of this Agreement.

5.12 Entire Agreement. This Agreement contains the entire agreement of the parties hereto and supersedes all prior agreements, representations and understandings, whether written or otherwise, between the parties relating to the subject matter hereof.

5.13 Additional Documents. The LRA agrees to deliver to SLDC such other and further agreements, consents, documents or instruments of conveyance, assignment or transfer and to do such other things and to take such other actions, supplemental or confirmatory, as may be required by SLDC for the purpose of or in connection with the consummation or evidencing of the contractual relationship contemplated hereunder.

5.14 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Missouri and the City of St. Louis.

IN WITNESS WHEREOF, the parties hereto have executed this instrument as of the day and year first above written.

ST. LOUIS DEVELOPMENT CORPORATION

(SEAL)

By: _____
Executive Director

ATTEST:

(SEAL)

**LAND REUTILIZATION AUTHORITY
OF THE CITY OF ST. LOUIS, MISSOURI**

By: _____
Chairman

ATTEST:
